Travel services agreement

This travel services agreement (hereinafter - the Agreement) is an official offer of GeoTrip LLC for an indefinite number of persons to conclude an Agreement published on the website - www.geotrip.world.

LLC "GeoTrip" (hereinafter referred to as "Tour Operator") represented by the General Director Vakhtang Margiani on the one hand and the visitor of the website www.geotrip.world, (hereinafter referred to as the "Customer") on the other hand, following the Georgian legislation, have concluded an Agreement on the following:

1. Definition of contract terms

1.1 the parties have agreed on the terms used in this agreement:
1.1.1 party - tour operator or customer.
1.1.2 the parties - the tour operator and the customer.
1.1.3 tourist package - a set of services for accommodation, transportation, food, sightseeing services and other services provided to tourists, depending on the customer's request individually or as part of a regular group tour.
1.1.4 customer - a person (tourist) ordering a tour for a tourist(s), including the legal representative of a minor tourist.
1.1.5 tourist - a person who is a consumer of services provided by the Tour operator.
1.1.6 tour program - a document containing information about the route and timing of the tour, the cost of the tour, accommodation, program of stay and features of the provision of sightseeing, as well as other services provided by this Agreement or are additional.
1.1.7 Application - the customer's request for the provision of tourism services.

2. Subject of contract:

2.1. Travel agency on behalf of and at the Customer’s expense undertakes to create a tourist package and provide tourist services to the Customer and/or to the persons indicated in package. After full payment of the cost of services, Travel agency provides Customer a payment confirmation before the beginning of the tour.

3. Rights and obligations of the parties:

3.1 The tour operator is obliged:

3.1.1 take actions aimed at selection, booking and payment of tourist services corresponding to the characteristics specified by the Customer in the Application.
3.1.2 provide the Customer with reliable information about the composition and characteristics of the agreed tourist services. Paid by the Customer tourist services are directly provided to the Customer / Tourist by other persons (Carrier, Hotel (guest house) and other persons providing tourist services within the tourist package).
3.1.3 after full payment by the Customer of the cost of tourist services, to give the customer a document confirming the payment and a copy of the contract signed by the tour operator with the tour program.

3.1.4 provide the Customer/Tourist with comprehensive information about the features of travel, as well as security measures (rules of conduct in the country of residence, etc.) and implement preventive measures aimed at ensuring the safety of the tourist.
3.1.5 to Inform the Customer/Tourist about the necessary and reliable information about the rules of entry, stay, customs, traditions, religious ceremonies, objects of tourist display, the state of the environment in the country of residence and other significant factors that may affect the conditions / quality of rest.
3.1.6 in the event of unforeseen circumstances that entail (may entail) significant changes to the terms of this Agreement and the possible consequences, immediately inform the Customer/Tourist in writing/orally.
3.1.7 to notify the Customer within three working days after the Application is sent, about the confirmation or non-confirmation of the requested services, in case of their absence (lack of availability of places in hotels, minibuses, etc.).);
3.1.8 immediately inform the authorized body in the field of tourism and interested persons (insurance company, relatives) about the emergency with the Tourist during the tour.

3.2 The tour operator has the right:

3.2.1 refuse to perform the contract in case of violation of the payment procedure by the Customer, as well as in cases of failure to provide or late provision by the Customer/Tourist of information and documents necessary for the execution of the contract or gross violation by the Customer/Tourist of the legislation of Georgia and/or actions/inaction endangering the conduct of the tour, as well as the life and health of other participants of the tour, including the lack of the necessary insurance and refusal of its registration prior to the tour.
3.2.2 make changes to the range of travel services specified in the Application in agreement with the Customer.
3.2.3 if the dates of the tour group in the group tour are not set for the pre-agreed dates in the Application, the tour operator shall notify the Customer no later than seven days before the start of the tour, who in turn has the right to choose:
1) full refund of prepayment within thirty days.
2) 20% discount from the price of the individual tour on the agreed date, with an additional payment of the difference in price between the group and individual tour.

3.3 The Customer is obliged:

3.3.1. provide the tour operator with all the necessary documents for the conclusion of the contract, and make payment in accordance with the terms established by the tour operator and with paragraph 4 of this Contract.
3.3.2 to Provide the tour operator with accurate and reliable information about passport data, e-mail address, contact numbers, messengers, necessary for processing documents and operational communication with the Customer/Tourist (his relatives).
3.3.3 if the Customer/Tourist has special, essential requirements for the quality and / or composition of tourist services, he / she shall notify the tour operator in writing.
3.3.4 by Providing the data necessary for the execution of this agreement, gives consent to the processing of such data, accepting the terms of this Agreement.
3.3.5 to Bring to the attention of the tour operator information about the circumstances that prevent the possibility of Using the customer / Tourist booked services, in particular, include:

- various diseases and related medical contraindications (in relation to the change of climatic conditions, different types of movement, the peculiarities of national cuisine, the use of medicines, etc.).);
- past conflicts with state authorities, such as a ban on entry to a certain accommodation, etc
3.3.6 to Comply with the legislation, rules of entry, immigration rules, not to harm the environment, to take care of the objects of tourist display, to comply with the rules of personal security in the country (place) of temporary stay, the country of transit;
3.3.7 to treat the property of third parties with due care and caution, to comply with the rules established by third parties to use such property, not to cause damage to the property of third parties. In violation of the terms of this paragraph, third parties have the right to demand from the Tourist material compensation for damage caused by the Tourist to a third party, which the Tourist undertakes to pay to a third party at the place of service.
3.3.8 Immediately inform the tour operator, as well as the representatives of the host party about the failure or improper provision of tourist services by third parties and any incidents with the Tourist.
3.3.9 follow the route and the terms of the tour, leave the place with the group based on timeplan and independently look after the accompany children.
3.3.10 follow the rules of personal safety during the trip.
3.3.11 follow the laws of the state, respect the customs, traditions and religious beliefs of the local population.
3.3.12 follow the rules of hotel accommodation and adhere to the generally accepted standards of behavior in the group. In case of gross violation of the above specified rules, preventing the provision of the remaining group of tourist services, the tour operator reserves the right to take measures to bring the customer/tourist to legal responsibility and early termination of the Contract with the customer/tourist. All losses incurred in such circumstances by the tour operator and/or third parties, the Customer agrees to reimburse in full.
3.3.13 if there are extreme/active sports in the tour, agreed in the Application, the Customer is obliged to provide the tour operator with a copy of insurance covering these risks or to give consent to the registration of such insurance for the tour.

3.4 The customer has the right:

3.4.1 to receive high-quality tourist services specified in the tour program.
3.4.2 to appeal to consular, diplomatic, other state, as well as tourist offices in case of infringement of his / her personal security or property and receiving legal and other types of assistance;
3.4.3 to receive emergency medical care.
3.4.4 for the protection of life and property in accordance with the legislation of the country of temporary stay, the country of transit.
3.4.5 to cancel this Agreement prior to the commencement of travel assuming indemnification to Travel agency the incurred expenses prior to notification of cancellation according to clause 5.3 of the Agreement.

4. Cost and payment procedure

4.1 at the conclusion of the contract, the Customer shall pay the tour operator or advance payment for the tour at least thirty percent of the cost of booked tourist services via Internet acquiring.
4.2 the tour operator informs the Customer about the availability of tourist services that meet the characteristics of the Application by electronic means/phone. In the absence of services specified in the Application, the tour operator offers the latter an alternative. In case of refusal of the Customer from alternative options, the contract is considered terminated and the tour operator returns money to the Customer made in accordance with paragraph 4.1.
4.3 full payment of the price of tourist services shall be made by the Customer not later than the beginning of the provision of tourist services.
4.4 if the customer has not made a timely additional payment on the terms of prepayment, the transaction is considered to be canceled and the tour operator returns to the Customer the prepayment amount, taking into account paragraph 5.3 of the Agreement.
4.5 the Total price of the tourist services booked by the Customer and rendered by the tour operator is specified in the act of the executed works.
4.6 payment is made by Bank transfer to the account specified by the tour operator (specified in the details of this agreement) or in cash at the cash desk of the tour operator.

5. Responsibility of parties

5.1 the tour Operator is not responsible for:
5.1.1 losses caused to the Customer/ Tourist in connection with his/her actions/inaction, which, in particular, include:
a) absence or arriving late to an agreed place of the provision of tourism services;
b) late or insufficient provision of the requested information and documents to the tour operator;
c) violation of the current legislation of Georgia.
d) being in a state of alcoholic, narcotic intoxication and, as a result, the inability to travel;
e) refusal of insurance.
5.1.2 losses and any other damage caused to the health and/or property of the tourist, incurred by the Latter in connection with the acquisition of additional services during the trip.
5.1.3 for non-compliance of tourist services with unreasonable expectations of the Customer / Tourist and their subjective assessment.
5.1.4 for violation of the terms and conditions of the trip, in the event of claims to the Tourist by the Carrier or the Host through the fault of the Tourist. This provision also applies to the obligation of the Tourist in a timely manner (by the check-out time) to vacate the occupied room.
5.1.5 actions of carriers (change, cancellation, postponement, delay of flights, trains, buses, etc.). In these cases, air, rail and road transport carriers are liable to tourists in accordance with international rules and the current legislation of Georgia.
5.1.6 actions of insurance companies.
5.1.7 actions of customs and immigration authorities. For violations of customs and border formalities, rules of travel and baggage, as well as violations of special rules of conduct in the place of tourist services, etc
5.2 in case of non-compliance or non-performance of the ordered services or improper performance of the contract by the tour operator, the customer has the right to file a claim. Claims submitted in writing within 30 (thirty) days after the end of the tour, and in the presence of documents confirming the facts set out in the claim (receipts, invoices,

certificates, photos, etc.) are accepted for consideration. Compensation of damages to the Customer shall be made within 30 (thirty) days in accordance with the legislation of Georgia.
5.3 in case of refusal of the customer from the tour, which is actually the termination of the contract on the initiative of the latter, the tour operator shall withhold from the Customer a penalty in the amount of:

Number of days / Cancellation percentage

from 40 to 25 days before the tour - Fifteen %
from 24 to 15 days before the tour - Thirty %
from 14 to 5 days before the tour - Sixty %
from 4 to 2 days before the tour - Seventy %
from 1 day to the beginning of the tour - Eighty %

In case of refusal of the Customer from the trip earlier than 40 days before the start of the tour, the tour operator shall be obliged within thirty days to return the payment in full less the actual expenses incurred.

6. Terms and conditions of the contract

6.1 the Agreement is concluded in a special order: by acceptance of this Agreement, containing all the essential terms of the Agreement, without its signing by the parties. The contract is legally binding and is equivalent to the contract signed by the parties. The fact confirming the acceptance of the conditions set forth below and the acceptance of this Agreement is the order of services from the tour operator and their subsequent payment.
6.2 the Agreement shall enter into force upon its acceptance by the Customer, the term of its termination is determined by the date of return of the Customer/Tourist from the agreed date of the tour.
6.3 the Act of work performed is provided by the tour operator to the Customer upon request in writing after the provision of previously booked travel services and confirms the execution of the order of the customer by the tour operator.

7. Force majeure

7.1 the Parties shall be released from liability for full or partial failure to fulfill obligations under the agreement, if the failure to fulfill obligations was the result of acts of force majeure, namely: fire, flood, earthquake, strike, war, the actions of public authorities or other circumstances beyond the Parties' control.
7.2. the party that cannot fulfill its obligations under the agreement shall notify the other Party in writing, with the provision of supporting documents issued by the competent authorities, in a timely manner, but not later than three (3) calendar days after the occurrence of force majeure.

8. Dispute resolution procedure

8.1 all disputes and disagreements arising between the parties under this Agreement shall be resolved through negotiations to achieve mutual agreement within 30 (thirty) days from the date of receipt of the letter.

8.2 if the differences between the tour operator and the Customer cannot be resolved through negotiations, they shall be settled by the courts in accordance with the legislation of Georgia.

9. Procedure for amendment and termination of the agreement

9.1 all changes and additions to this Agreement shall be effective if they are made in writing.
9.2 the Agreement may be terminated by mutual written consent of the parties. The tour operator undertakes to return to the Customer the funds due to it not later than 30 (thirty) banking days, taking into account paragraph 5.3 of the Agreement.

10. Requisites

Tour Operator

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